Women Voting in Public Elections
Hakham Ben Ṣion Me'ir Ḥai ʿUzziel

Mishpaṭe ʿUzziel 4, Ḥoshen Mishpat 6
Translation and footnotes: Simon Montagu.

I wrote this *teshuba* some time ago in order to clarify the *halacha* for myself, without intending to publish it or make a practical ruling on this issue. But now, since the question has been settled, I see fit to publish it in order to magnify Torah.

1: Women's rights in the elected assembly and the governing bodies of the community and the *Yishuv*.

A stormy controversy raged around this issue through the length and breadth of the land of Israel, with placards, pamphlets, and newspaper articles appearing on a daily basis totally forbidding the participation of women in elections. Some based themselves on *halacha*; some on principles of correct conduct and modesty; some on preserving domestic harmony within the family. What they all had in common was reliance on the saying "Anything new is forbidden by the Torah." I regret that I do not have access to all the material written on the subject in order to discuss it, but I gratefully acknowledge my friend, the distinguished Rabbi, steeped in Torah, Chaim Hirschensohn, who collected a comprehensive summary of the material in the second volume of his book *Malki Baqodesh*,[1] giving me the opportunity to take in all the opinions that forbid it and discuss them according to my limited understanding.

The actual question can be divided into two separate aspects: a) the active right – to vote, and b) the passive right – to be elected.

With respect to the first question, we have not come across any clear basis for a prohibition, and it makes no logical sense to deny women

1 St. Louis, 1921, pp. 171–209.

this individual right, since in these elections we are choosing leaders and granting our representatives the authority to speak in our name, to arrange the affairs of the *Yishuv* and to impose taxes on our property. Women, whether directly or indirectly, accept the authority of these representatives and obey their instructions and legislation. One cannot have it both ways, by expecting women to obey the national representatives while denying them the right to select them!

And if they say that women should be excluded from the electorate since they do not have the intellectual capacity to choose those suitable to lead the community, we will reply that there will never be any shortage of men lacking in intellectual capacity: should they also be excluded? In any case, both in earlier periods and at the present day, women's intellectual capacity and discernment is equal to men's: they are able to conduct business and commerce, and manage their own affairs with complete competence. Would anyone suggest that a grown woman needs to have trustees appointed against her will? When the Rabbis said that "women's knowledge is light-weight" (bShabbat 33 and bQiddushin 80), it means something completely different. So too when they say that "women have no wisdom except at spinning" (bYoma 66), it was only a rhetorical device to evade responding to a challenge posed by a women, and in fact the Talmud itself describes the woman in question as "wise": "A wise woman asked R. Eli'ezer…" The Rabbis explicitly comment on the verse "God built [Adam's] rib…" (Genesis 2:22) that "this teaches that the Holy One, Blessed be He, gave women extra understanding." (bNidda 48)[2]

As for immodesty, where is the immodesty in voters entering the ballot booth one by one and submitting their vote? If this is a concern, normal life will be impossible: it will be forbidden to walk down the street or for men and women to go into a shop together; it will be forbidden

2 The Talmud plays on the similarity between the two roots *bana*, to build, and *bin*, to perceive or understand.

to do business with a woman in case it leads to intimacy and on to immodesty. Nobody has ever suggested such a thing!

And as for family harmony, the distinguished rabbi puts it well: in that case we would have to deny the right to vote from children who are still living with their parents: in all cases where the Sages were concerned for ill-feeling, they made the comparison between wives and adult children living with their parents (bBaba Meṣi'a 12). The objection may be raised that this is indeed an issue, and further similar cases should not be added to those that already exist. But in fact there is no cause for concern of ill-feeling caused by members of the family holding different opinions. Nobody can suppress their own world-view and opinions, and family love based on joint activity is sufficiently strong that it will not be damaged by such differences of opinion.

Rabbi Doctor Ritter[3] makes a novel argument against women voting: they are not a "community" or a "congregation", and were not included in the census of the children of Israel or their genealogies [in the book of Numbers] (I do not have the text of his article before me at present, but this is what I understand from what [R. Hirschensohn] quotes). Assuming for the sake of argument that they are not a community or a congregation or a family or a head count or anything whatever, are they not rational beings created in God's image? Do they have no common interests with the elected assembly or a committee appointed by it, whose rulings they will follow in all matters connected to their property and their children's education?

Therefore, since we have found no indication of this prohibition, we see no justification for opposing women's right to vote or for dismissing the question, when a section of the community is in favour of it. Perhaps this is similar to the case where the Mishna said "Even if ninety-nine say [that the fruits] should be distributed and one says that

3 Dov Aryeh Ritter (1855–1936), Chief Rabbi of Rotterdam, in the periodical *Maḥziqe Hadat*, Jerusalem 4 December 1919, quoted in *Malki Baqodesh op. cit.*, p. 197.

they should be left in the field, one listens to the latter, since they spoke according to *halacha* (mPe'a 4:2). And further than that, they permitted women to lay hands on sacrifices in order to grant satisfaction to women (bḤagiga 16), even though it appears to be forbidden. *A fortiori* in the question before us, where there is no question of infringing a prohibition, and when forbidding their participation will be insulting and offensive, it is clear that they should be given the right to participate.